

All India Council for Technical Education (Categorization of Standalone Institutions for Grant of Graded Autonomy) Guidelines, 2019

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Rule

ALL-INDIA-COUNCIL-FOR-TECHNICAL-EDUCATION-CATEGORIZATION-OF-STANDALONE-INSTITUTIONS-FOR-GRANT-OF-GRADED-AUTONOMY-GUIDELINES-2019 of 2019

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All India Council for Technical Education (Categorization of Standalone Institutions for Grant of Graded Autonomy) Guidelines, 2019

Published vide Notification F. No. AICTE/P&AP/SIs/2019, dated 10.10.2019

Last Updated 16th October, 2019

F. No. AICTE/P&AP/SIs/2019. - The following is published for general information: -

Preamble. - Whereas All India Council for Technical Education (AICTE) is mandated to determine, promote and maintain the standards of higher education in Standalone Institutions;

Whereas, AICTE recognizes the need to create an enabling environment whereby Standalone Institutions can become institutions of global excellence;

Whereas, AICTE recognizes that autonomy is pivotal in promoting and institutionalizing excellence in higher education and that the regulatory framework needs to facilitate better performing institutions towards excellence in higher education.

AICTE earlier issued Gazette Notification titled "All India Council for Technical Education (Categorization of Standalone Institutions for Grant of Graded Autonomy) Regulations, 2019" on 18th January, 2019 in exercise of the powers conferred under sub-section (1) of section 23 read with section 10(b) (g) (i) (m) of the All India Council for Technical Education Act, 1987 and in supersession of these regulations, notifies the AICTE (Categorization of Standalone Institutions for Grant of Graded Autonomy) Guidelines, 2019". These guidelines are as follows: -

1.

Short title, application and commencement.

- 1.1. These guidelines shall be called the All India Council for Technical Education (Categorization of Standalone Institutions for Grant of Graded Autonomy) Guidelines, 2019.

1.2

They shall apply to all Standalone Institutions conducting courses/programmes with the approval of AICTE as per AICTE Act, 1987.

1.3

They shall come into force from the date of their notification in the Official Gazette of India.

2.

Definitions.

- In these guidelines, unless the context otherwise requires: -

2.1

"Accreditation" means the process of quality control in higher education, whereby, as a result of evaluation or assessment or by any other scientific method followed by recognized accreditation agencies, a Standalone Institution or programme(s) conducted therein is recognised as conforming to benchmarked parameters of academic quality;

2.2

"Assessment" means the process involved in ascertaining or verifying the capabilities of Standalone Institution in terms of its physical infrastructure, human resources (including faculty), administration, course curricula, admission and student evaluation procedures and governance structure prior to the commencement of its academic programmes;

2.3

"AICTE" means the All India Council for Technical Education as defined in the All India Council for Technical Education Act, 1987;

2.4

"Score" means the cumulative score as followed by the NBA or any other Assessment and Accreditation Agencies (AAA) recognized by the AICTE under relevant AICTE regulations, while granting accreditation;

2.5

"National Board of Accreditation (NBA)" means the body established by the AICTE to assess and accredit among others the Standalone Institutions in the country;

2.6

"Open & Distance Learning" mode means a mode of providing flexible learning opportunities by overcoming separation of teacher and learner using a variety of media, including print, electronic, online and occasional interactive face-to-face meetings with the presence of a Standalone Institution or Learner Support Services to deliver teaching-learning experiences, including practical or work experiences;

2.7

"Financial Times Global MBA Ranking" and "QS Global MBA Ranking means annual publication of rankings by Financial Times" (a UK based leading News Organization) Magazine and by QS Quacquarelli Symonds (a UK based leading

global higher education company) respectively;

2.8

"Standalone Institutions" means those institutions which are not affiliated to any of the Universities, and imparting courses through regular or through Open and Distance Learning Systems, leading to Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma Levels in Management and allied areas, Computer Applications and Travel and Tourism with the approval of AICTE; Words and expressions used and not defined in these guidelines, but defined in the All India Council for Technical Education Act, 1987 and not consistent with these guidelines shall have the meanings respectively assigned to them in that Act.

3.

Framework for Categorization of Standalone Institutions for Grant of Graded Autonomy.

- The AICTE shall categorize Standalone Institutions into following three categories i.e. Category-I, Category-II and Category-III based on the parameters laid down in sub-clauses (i), (ii) and (iii) and as notified by the AICTE through the detailed guidelines from time to time.

3.1

Category-I Standalone Institution. - Standalone Institution shall be in Category-I if;

(i)

a. The Institute is running 3 or less than 3 numbers of courses, then all the courses must be NBA accredited with a 75% or more score.

b. the institute is running 4 courses then at least 3 courses must be NBA accredited with a 75% or more score.

c. the institute is running 5 or more than 5 courses, say N number, then at least N-2 courses must be NBA accredited with a 75% or more score.

or

ii. the institute is ranked within the first 100 ranks in Global MBA Rankings in at least one of the ranking schemes viz., the Financial Times (FT) Global MBA Ranking or the QS Global MBA Ranking.

3.2

Category-II Standalone Institution. - Standalone Institution shall be in Category-II if

i. the Institute is running 3 or less than 3 courses, then all the courses must be NBA accredited with a 67.5% or more score.

ii. the institute is running 4 courses then at least 3 courses must be NBA accredited with a 67.5% or more score.

iii. the institute is running 5 or more than 5 courses, say N number, then at least N-2 courses must be NBA accredited with a 67.5% or more score.

3.3

Category-III Standalone Institution. - Standalone Institution shall be in Category-III if it does not come either under Category-I or Category-II.

4.

Dimensions of Autonomy for Category-I Standalone Institutions.

- 4.1. Standalone Institutions shall be eligible for grants and no inspections by the AICTE shall be required for the same.

4.2

Standalone Institutions may start new courses/programmes in disciplines that form a part of its existing academic framework with the nomenclature of Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma in new and innovative areas that are relevant to local, national or international needs. However, information has to be uploaded in AICTE Web Portal and upon uploading the same; such courses shall be treated deemed to be recognized by AICTE. However, number of new courses and divisions shall not exceed the number of NBA Accredited courses in the given cycle and subject to maintaining all AICTE norms and standards. Fellow Programme shall not be in the ambit of Autonomy, which shall be approved by AICTE as per norms.

4.3

Standalone Institutions may start skill courses, consistent with the National Skills Qualification Framework, without approval of the AICTE, consistent with the approved nomenclature of AICTE.

4.4

Standalone Institutions may open research parks, incubation centres, institute society linkage centres, in self-financing mode, either on its own or in partnership with private partners, without approval of AICTE. However, in all such

arrangements, the ownership of all immovable property and that component of movable property procured through the resources of the Institution shall remain with the Standalone Institution.

4.5

Standalone Institutions, subject to the Rules, Regulations and Guidelines of Government of India, may hire, without approval of the AICTE, foreign faculty having taught at any institution appearing in top five hundred (500) of any of the world renowned ranking frameworks, such as the Financial Times (FT) Global MBA Ranking or the QS Ranking, up to twenty percent over and above on their total sanctioned faculty strength. Standalone Institutions will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

4.6

Standalone Institutions shall be free to admit foreign students on merit, subject to a maximum of twenty percent, over and above the strength of their approved domestic students. However, AICTE Norms, Standards and rules of Govt. of India such as Study in India are applicable in this regard.

4.7

Standalone Institutions, while following the pay scales as laid down by the AICTE, shall build in an incentive structure to attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from AICTE or Government funds. The such incentive structure shall be strictly merit based with clearly defined, transparent and objective criteria and shall not be universal. It must necessarily be approved by the Board of Governors of the Standalone Institution. The AICTE shall be informed about the incentive structure within thirty days of approval by the Board of Governors of the Standalone Institution.

4.8

Standalone Institutions may engage in academic collaborations with foreign institutions in the top 500 of Financial Times (FT) Global MBA Ranking or QS Ranking or top 200 of discipline specific ranking in Financial Times (FT) Global MBA Ranking or QS Ranking without approval of the AICTE.

4.9

Standalone Institutions may offer courses in the Open and Distance Learning mode, without approval of the AICTE, provided it satisfies all the norms and standards laid down by AICTE from time to time.

4.10

Standalone Institutions shall be exempted from annual monitoring of their institutions and learning resource centre(s) as stipulated under AICTE Approval Process Handbook (APH) as amended /modified from time to time, except when there is substantive evidence of their not meeting basic minimum criteria or of irregularities or malpractices.

4.11

In case there is any external review required by the AICTE under any statute or executive order, then it would be sufficient that the institution sends a report to the AICTE in a prescribed review format.

The institution should also mandatorily disclose the period of accreditation and its category status. Once the accreditation period is over, the status of autonomy automatically stands withdrawn unless institute gets itself accredited.

5.

Dimensions of Autonomy for Category-II Standalone Institutions.

- 5.1. Standalone Institutions may start a new course/programme in disciplines that form a part of its existing academic framework without approval of the AICTE with the nomenclature of Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma in new and innovative areas that are relevant to local, national or international needs, with information to the AICTE. However, number of new courses and divisions shall not exceed number of NBA Accredited courses in the given cycle and subject to maintaining all AICTE norms and standards. Fellow Programme shall not be in the ambit of Autonomy, which shall be approved by AICTE as per norms.

5.2

Standalone Institutions may start skill courses, consistent with the National Skills Qualification Framework, without approval of the AICTE, consistent with the approved nomenclature of AICTE.

5.3

Standalone Institutions, subject to the Rules, Regulations and Guidelines of Government of India, may hire, without approval of the AICTE, foreign faculty having taught at any institution appearing in top five hundred of any of the world

renowned ranking frameworks, such as the Financial Times (FT)

Global MBA Ranking or the QS Ranking, up-to twenty percent over and above on their total sanctioned faculty strength. Standalone Institutions will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

5.4

Standalone Institutions shall be free to admit foreign students on merit, subject to a maximum of twenty percent, over and above of the strength of their approved domestic students. However, AICTE Norms, Standards and rules of Govt. of India such as Study in India are applicable in this regard.

5.5

Standalone Institutions, while following the pay scales as laid down by the AICTE, shall build in an incentive structure to attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from AICTE or Government funds. The such incentive structure shall be strictly merit based with clearly defined, transparent and objective criteria and shall not be universal. It must necessarily be approved by the Board of Governors of the Institution. The AICTE shall be informed about the incentive structure within thirty days of approval by the Board of Governors of the Institution.

5.6

Mandatory disclosure of information & periodic review of autonomy:

Standalone institutions will adopt the AICTE Model Governance Structure and maintain utmost transparency in its functioning. All information relating to management, finance, tuition and other fees, data relating to intake/enrolment/placement and faculty shall be provided to AICTE as per its norms.

AICTE shall periodically review the functioning of Standalone Institutions which have been granted autonomy at least once in 5-years. The autonomy granted shall be contingent upon the principle of accountability and transparency and the accreditation as applicable should be valid for the entire duration of the course for which the students are admitted in each year.

The institution should also mandatorily disclose the period of accreditation and its category status. Once the accreditation period is over the status of autonomy automatically stands withdrawn unless institute gets itself accredited.

6.

Change in Category of Standalone Institutions for non-maintenance of accreditation score or ranking as defined in Clause 3.

- 6.1. Standalone Institutions under Category-I and Category-II shall continue to be in their respective categories as long as they maintain the required parameters related to accreditation score or international ranking as defined in Clause 3, as the case may be, for that category.

6.2

It shall be incumbent upon Standalone Institution to intimate the AICTE, its changed status within thirty days of such a change.

6.3

If Standalone Institution fails to maintain status in a category and moves down to a lower category, it shall not be entitled to enjoy any privileges already accorded to it from the day of such downgrading:

Provided that any kind of initiatives taken under the privileges associated with erstwhile higher status shall be permitted to continue till their approved duration / logical conclusion, provided that the activity/action initiated has been communicated previously to the AICTE:

Provided further that if such Standalone Institution regains its earlier, higher status, the privileges of that higher category shall be restored from the day the status is changed.

6.4

All Standalone Institutions shall have to submit student's data on AICTE portal and must register at the National Academic Depository (NAD).

6.5

In case it is not uploaded as above, the AICTE may not grant approval to the Institution for the next academic year or impose penalties as per Approval Process Handbook of AICTE.

7.

Procedure for Categorization of Standalone Institutions.

- 7.1. The AICTE shall fix the dates (at least two times in a year, preferably 1st of June and 1st of December) by which an institution shall submit a request in prescribed format for categorization under these Regulations. The dates so fixed shall be notified at least three months in advance.

7.2

All such applications shall be scrutinized by the AICTE and orders on Categorization shall be passed within thirty days from the last date specified for the receipt of such applications. During this period, the Institution and the AICTE shall put both place such application on their websites.

8.

Change in parameters/requirements, if any, for eligibility under Category-I or Category-II of Standalone Institutions.

- Whenever there is a change in the categorization parameters as detailed in Regulation (3) above, it shall be notified by the AICTE separately.

9.

Mandatory Disclosure of Information & Periodic Review of Autonomy.

- Standalone institutions will adopt the AICTE Model Governance Structure and maintain utmost transparency in its functioning. All information relating to management, finance, tuition and other fees, data relating to intake/ enrolment/ placement and faculty shall be provided to AICTE as per its norms.

10.

Graded Autonomy Guidelines vis-à-vis other Regulations.

- The provisions mentioned in the clause 4 and 5 of the guideline i.e. dimensions of autonomy for Category-I Standalone Institutions and Category-II Standalone Institutions, respectively, shall prevail in case of any inconsistent/conflicting provisions in the other AICTE Regulations.

11.

All institutions will have to follow the Public Grievance Mechanism as notified by AICTE from time to time.

12.

Removal of Difficulties.

- AICTE reserves the right to remove difficulty/difficulties in the course of implementation of these guidelines in consultation with the Government of India/ Ministry of Human Resource Development.

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